

PANJAB UNIVERSITY, CHANDIGARH
(Established under the Panjab University Act VII of 1947-enacted by the Govt. of India)

FACULTY OF ARTS

SYLLABI

FOR

M. A.

HUMAN RIGHTS AND DUTIES

(SEMESTER SYSTEM)

EXAMINATIONS, 2012-13

- : o: -

GUIDELINES FOR CONTINUOUS INTERNAL ASSESSMENT (20%) FOR REGULAR STUDENTS OF POSTGRADUATE COURSES OF M.A. HUMAN RIGHTS AND DUTIES (SEMESTER SYSTEM)

(Effective from the First Year Admissions for the Academic Session 2007-2008)

1. The Syndicate has approved the following guidelines, mode of testing and evaluation including Continuous Internal Assessment of students :

   (i) Terminal Evaluation : 80 %
   (ii) Continuous Assessment : 20 %
   (iii) Continuous Assessment includes written assignment, snap tests, participation in discussions in the class, term papers, attendance etc.
   (iv) In order to incorporate an element of Continuous Internal Assessment of students, the Colleges/Departments will conduct one written test as quantified below :

(a)	Written Test	:	25 (reduced to 5)
(b)	Snap Test	:	25 (reduced to 5)
(c)	Term Paper	:	25 (reduced to 5)
(d)	Participation in Class discussions	:	15 (reduced to 3)
(e)	Attendance	:	10 (reduced to 2)
		Total :	**100 (reduced to 20)**

2. Weightage of 2 marks for attendance component out of 20 marks for Continuous Assessment shall be available only to those students who attend 75% and more of classroom lectures/seminars/ workshops. The break–up of marks for **attendance component** for theory papers shall be as under :

   Attendance Component Mark/s for Theory Papers

(a) 75 % and above up to 85 %	:	1
(b) Above 85 %	:	2

3. It shall **not be compulsory** to pass in Continuous Internal Assessment. Thus, whatever marks are secured by a student out of 20% marks, will be carried forward and added to his/her score out of 80 %, i.e. the remaining marks allocated to the particular subject and, thus, he/she shall have to secure pass marks both in the University examinations as well as total of Internal Continuous Assessment and University examinations.

4. Continuous Internal Assessment awards from the affiliated Colleges/Departments must be sent to the Controller of Examinations, by name, **two weeks before** the commencement of the particular examination on the *proforma* obtainable from the Examination Branch.

SPECIAL NOTE:

(i) The theory question paper will be of 80 marks and 20 marks will be for internal assessment.

(ii) In the case of Postgraduate Courses in the Faculties of Arts, Science, Languages, Education, Design & Fine Arts, and Business Management & Commerce (falling under the purview of Academic Council), where such a provision of Internal Assessment/Continuous Assessment already exists, the same will continue as before.

(iii) The marks obtained by a candidate in Continuous Internal Assessment in Postgraduate Classes from the admissions of 2007 will be shown separately in the Detailed-Marks-Card (D.M.C.).

PANJAB UNIVERSITY, CHANDIGARH

OUTLINES OF TESTS, SYLLABI AND COURSES OF READING IN THE SUBJECT OF HUMAN RIGHTS AND DUTIES, FOR M. A. I & III SEMESTERS EXAMINATIONS, NOVEMBER/DECEMBER 2012 AND M. A. II & IV SEMESTERS EXAMINATIONS, APRIL/MAY 2013.

The course consists of 14 core (compulsory) papers and 2 optional papers. Following a semester system, each semester will consist of four papers. The first semester will consist of four core theory papers. In the other three semesters there shall be three theoretical and one project based paper. Semesters I and II shall each consist of 4 core papers whereas Semesters III and IV would each contain three core papers and one optional paper. Optional papers shall be offered based on the availability of faculty. Out of a total of 100 marks assigned for each theory paper, written examination shall carry 80 marks whereas internal assessment shall carry 20 marks. However, in case of Project based paper for Semester II, the Project Report shall carry 80 marks and viva voce shall carry 20 marks.

For Semester III examination, students shall be awarded marks out of maximum of 300 marks and for semester IV examination the marks shall be awarded out of a maximum of 500 marks. Aggregate marks of Semesters I-IV however shall remain the same i.e. 1600 marks.

LIST OF PAPERS

SEMESTER I

Core Paper 1 – Historical, Theoretical and Philosophical Perspectives on Human Rights and Duties

Core Paper 2 - Human Rights and Duties in India

Core Paper 3 - Human Rights Issues in India

Core Paper 4 - Research Methods

SEMESTER II

Core Paper 5 - Development, Globalization and Human Rights

Core Paper 6 - Human Rights and Duties: Women and Children

Core Paper 7 - Environment, Human Rights and Duties

Core Paper 8 - Project Report based on Fieldwork

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SEMESTER III

Core Paper 9 - Science and Technology, Human Rights and Duties

Core Paper 10 - Human Rights and Duties for the Aged and the Differently abled

Core Paper 11/15 - Fieldwork Based Dissertation*****

Core Paper 12 - The candidate has to opt for any **ONE** of the following optional papers

Optional Paper I (a) – Working Class, Human Rights and Duties

Optional Paper I (b) - International Humanitarian and Refugee Laws

Optional Paper I (c) - Disadvantaged Sections/Groups and Human Rights and Duties

SEMESTER IV

Core Paper 13 – Civil Society, Social Movements and Human Rights and Duties in India

Core Paper 14 – Human Rights and Criminal Justice System

Core Paper 15/11 – Fieldwork Based Dissertation*****

Core Paper 16 - The candidate has to opt for any ONE of the following optional papers

Optional Paper II (a) - Minorities, Human Rights and Duties

Optional Paper II (b) - Rights of the Displaced People and their Rehabilitation

Optional Paper II (c) - Peoples' Right to Self-Determination

*****The student shall be required to write a dissertation on any aspect of a human rights and duties problem/situation. He/she shall visit the problem area(s) and study the situation, causes, and solutions, people's responses and his/her own experiences of human rights violations, if any. He/she shall study the relevant literature and write a report on the approved topic with the help of theoretical discussions on research methodology. Field Work based dissertation will spread over Semesters III & IV and carry 200 marks. Out of 200 marks, dissertation will be of 160 marks and viva-voce examination will be of 40 marks. The viva-voce examinations in the dissertation shall be held after the written examination of Semester IV and the students shall have to submit the dissertation by the end of month of March on the date specified by the Department.

M.A. HUMAN RIGHTS AND DUTIES: FIRST SEMESTER

SEMESTER I

CORE PAPER 1: HISTORICAL, THEORETICAL AND PHILOSOPHICAL PERSPECTIVES ON HUMAN RIGHTS AND DUTIES

Max. Marks: 100
Theory : 80 Marks
Int. Ass. : 20 Marks
Time : 3 Hours

NOTE: The Paper carries 80 marks. There shall be 9 questions in the question paper and the candidate shall be required to attempt 5 questions in all. The first question shall be compulsory containing 15 short answer type questions spreading over the entire syllabus and to be answered in about 25 to 30 words. The candidate shall be required to attempt any 10 short answer type questions out of 15 questions asked. Each short answer type question shall be of 2 marks. Rest of the paper carrying 60 marks shall be divided into 4 units. Each unit shall have two questions and the candidate shall be given internal choice i.e. out of the two questions asked, the candidate shall attempt one question from each of the four units.

Objectives

This paper, introduces the student to the a) theoretical, conceptual, historical and other general aspects of human rights and duties, b) United Nations and human rights and c) international and regional concerns for human rights.

Course Contents

Unit I: Human Rights- Philosophical Perspectives

Meaning, nature, and classification of rights; Universal Human Values: Dignity, Justice and Equality.

Unit II: Human Rights- Historical Perspectives

Magna Carta, British Bill of Rights, French and American Declarations, UN Charter; International Bill of Rights; Regional Mechanisms on Human Rights: European Convention, American Convention, African Charter and the Arab League.

Unit III: Human Rights- Theoretical Perspectives

Natural Rights theory; Liberal theory of rights; Legal/Positivist theory of Rights; Marxist theory of rights; Sociological theory of Rights; and Cultural theory of Rights.

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Unit IV: Human Rights, Duties and Responsibilities

Concept of Duties and Responsibilities; Relationship between Rights and Duties; Classification of Human duties and responsibilities: General - (a) Moral, ethical, social, economic, political and cultural (b) Universal (c) Traditional/Modern. The U.N Declaration on Human Duties and Responsibilities (DHDR) of Individuals, Groups and Organs to promote and protect Human Rights and Fundamental Freedoms1998

References

Suggested Readings:

Alston, Phillip (ed.) (1992), *The United Nations and Human Rights: A Critical Appraisal,* Oxford: Clarendon Press.

Baehr, Peter R. (1999), *Human Rights: Universality in Practice,* New York: Palgrave.

Baxi, Upendra (2002), *The Future of Human Rights,* New Delhi: Oxford University Press.

Bhagwati, P.N. (1987), *Dimensions of Human Rights,* Madurai: Society for Community Organization Trust.

Davidson, Scott (1993), *Human Rights,* Buckingham: Open University Press.

Donnelly, Jack (1989), *Universal Human Rights in Theory and Practice,* Ithaca: Cornell University Press.

Dube, M. P. and Neeta Bora (ed.)(2000), *Perspectives on Human Rights,* New Delhi: Anamika Publishers.

Freeman, Michael (2003), *Human Rights: An Interdisciplinary Approach,* Cambridge: Polity Press.

Hargopal, G. (1999), *Political Economy of Human Rights,* Hyderabad: Himalaya.

Jacobs, Francis G. and R.C.A. White (1996), *The European Convention on Human Rights,* Oxford: Clarendon University Press.

Kannabiran, K. G. (2003), *The Wages of Impunity*: *Power, Justice and Human Rights,* New Delhi: Orient Longman.

Mazzini, Joseph, (1890) *Essays on the duties of man,* Lahore, Anglo-Sanskrit Pr..

Further Readings:

Kothari, Smitu and Harsh Sethi (ed.) (1991), *Rethinking Human Rights: Challenge for theory and Action,* Lokayan, Delhi.

Krasno, Jean A. (2005), *The United Nations,* New Delhi: Viva.

Langley, Winstone E. (1999), *Encyclopedia of Human Rights Issues since 1945,* London: Fitzroy Dearborn Publishers.

Lauterpacht, Hersch (1945), *An International Bill of the Rights of Man,* New York: Columbia University Press.

Morsink, Johannes (1999), *The Universal Declaration of Human Rights: Origins, Drafting and Intent,* Philadelphia: University of Pennsylvania Press.

O'Byrne, Darren J. (2003), *Human Rights: An Introduction,* New Delhi: Pearson.
Sanajaoba, N. (2000), *Human Rights in the New Millennium,* New Delhi: Manas Publications.

Tuck, R. (1979), *Natural Rights Theories,* Cambridge: Cambridge University Press.

UN Centre for Human Rights (1996), *International Human Rights Standards for Law Enforcement*, Geneva: World Campaign for Human Rights.

UN Centre for Human Rights (1990), *Special Issue on Implementation of International Human Rights Instruments*, New York.

UN Centre for Human Rights (1996), *The International Bill of Human Rights,* Geneva: World Campaign for Human Rights.

Vijapur, A.P. (1996), *The United Nations at Fifty: Studies in Human Rights,* New Delhi: South Asian Publishers.

CORE PAPER 2: HUMAN RIGHTS AND DUTIES IN INDIA

Max. Marks: 100
Theory : 80 Marks
Int. Ass. : 20 Marks
Time : 3 Hours

NOTE: The Paper carries 80 marks. There shall be 9 questions in the question paper and the candidate shall be required to attempt 5 questions in all. The first question shall be **compulsory** containing 15 short answer type questions spreading over the entire syllabus and to be answered in about 25 to 30 words. The candidate shall be required to attempt any 10 short answer type questions out of 15 questions asked. Each short answer type question shall be of 2 marks. Rest of the paper carrying 60 marks shall be divided into 4 units. Each unit shall have two questions and the candidate shall be given internal choice i.e. out of the two questions asked, the candidate shall attempt one question from each of the four units.

Objectives

This paper focuses on the normative and institutional aspects of human rights and duties against the backdrop of the politics and society in India. It offers insights

on the Constitution and human rights and duties, special laws for the protection of vulnerable sections of the people, implementation and enforcement mechanisms, Indian politics and human rights violations, and the importance of internalizing human rights and duties.

Course Contents

Unit I: The Constitution and Human Rights and Duties

Fundamental Rights; Directive Principles of State Policy; Fundamental Duties; Relationship between them; International human rights and the Indian Constitution.

Unit II: Affirmative Legislation for Specific Categories /Vulnerable Sections

Reservations and the right to equality; Protection of Women: in Private and Public domain; unorganized sector workers; Children.

Unit III: Enforcement Mechanisms and Problems

Constitutional Mechanisms: Judiciary, Executive; **Statutory Mechanisms**: Human Rights Commissions: National and State; SC/ST Commission, Minorities Commission, Women's Commission; Problems of Enforcement of Human Rights In India –Abuse of executive power: deaths and torture in police custody etc.; Special Laws and Human Rights Violations, Lack of accountability and transparency in government functioning.

Unit IV: The State and Civil Society in India

Role of civil society: NGOs, Social movements, pressure groups, Information Media in observing duty to protect, promote and generate awareness against human rights violations in private domain: within the family, by dominant castes, religious groups; Human Rights violations in public domain: State, landlords, employers, etc., Riots and violence in connection with inter-community tensions; Unequal access to natural resources.

References

Suggested Readings:

Alam, Aftab (ed.) (1999), *Human Rights in India: Issues and Challenges,* New Delhi: Raj Publications.

Austin, Granville (2000), *Working of a Democratic Constitution: The Indian Experience,* New Delhi: Oxford University Press.

Austin, Granville (2002), *The Indian Constitution: Cornerstone of a Nation*, New Delhi: OUP.

Basu, D.D. (2009), *Introduction to the Constitution of India*, Nagpur, New Delhi, Nexus Lexis, Butterworths.

M.A. HUMAN RIGHTS AND DUTIES: FIRST SEMESTER

Begum, S.M. (ed.) (2000), *Human Rights in India: Issues and Perspectives,* New Delhi: APH Publishing Co.

Baxi, Upendra (2002), *The Future of Human Rights,* New Delhi: Oxford University Press.

Centre for Development and Human Rights (2004), *The Right to Development – A Primer,* New Delhi: Sage Pub.

Das. A.K. (2007), *Human Rights in India*, New Delhi, Sarup Book Publishers.

Fundamental Duties of citizens- India (1999), Ministry of Human Resource Development-Department of Education, New Delhi: Govt. of India.

Desai, A.R. (ed.) (1986), *Violations of Democratic Rights in India,* Bombay: Popular Prakashan.

Dikshit, R.C. (1998), *Human Rights and the Law*: *Universal and Indian,* New Delhi: Deep and Deep.

Jha, R.C. (1995), *Resurrecting A Human Right in India,* New Delhi: Sheriden Book Company.

Kashyap, Subhash C. (1978), *Human Rights and Parliament,* Delhi: Metropolitan.

Kirpal, B. N. et al. (2004), *Supreme But Not Infallible*, New Delhi: OUP.

Mehta, P.L. and Neena Verma (1995), *Human Rights under the Indian Constitution,* New Delhi: Deep and Deep Publications.

Mishra, Pramod (ed.) (2000), *Human Rights in South Asia,* Delhi: Kalpaz Publications.

Paul, R.C. (2000), *Situation of Human Rights in India,* New Delhi: Commonwealth Publishers.

Rao, Ashiwini (2010), *Status of Human Rights in India*, New Delhi, Pacific

Ray, Arun (2004), *National Human Rights Commission in India*: *Formation, Functioning and Future Prospects,* New Delhi: Atlantic.

Sharma, Gokulesh, (2003) *Indianization of Rights and Duties*, New Delhi: Manas.

Further Readings:

Ray, Aswani K. (1986) "Civil Rights Movement and Social Struggle in India," *Economic and Political Weekly*, Vol. XXX1, No.28, 12 July.

Rao, K. Subha (1962), *Fundamental Rights under the Constitution of India,* Madras: Madras University.

Sathe S. P., (2004), *Judicial Activism in India*, (2004) New Delhi: OUP.

Sehgal, B. P. Singh (ed.) (1999), *Human Rights in India: Problems and Perspectives,* New Delhi: Deep and Deep.

Verma, R.S. (2000), *Human Rights: Burning Issues of the World*, Volumes I, II and III. Delhi: Radiant Publishers.

CORE PAPER 3: HUMAN RIGHTS ISSUES IN INDIA

Max. Marks: 100
Theory : 80 Marks
Int. Ass. : 20 Marks
Time : 3 Hours

NOTE: The Paper carries 80 marks. There shall be 9 questions in the question paper and the candidate shall be required to attempt 5 questions in all. The first question shall be compulsory containing 15 short answer type questions spreading over the entire syllabus and to be answered in about 25 to 30 words. The candidate shall be required to attempt any 10 short answer type questions out of 15 questions asked. Each short answer type question shall be of 2 marks. Rest of the paper carrying 60 marks, shall be divided into 4 units. Each unit shall have two questions and the candidate shall be given internal choice i.e. out of the two questions asked, the candidate shall attempt one question from each of the four units.

Objectives

The focus of this paper is on societal problems with regard to human rights. Various social, economic, political, health and cultural problems that underlie human rights deprivations in Indian society will be discussed.

Course Contents

Unit I: Concepts and Approaches

Concept of societal problems and human rights; Theoretical approaches to social problems and social changes; Causes and types of social problems

Unit II: Economic Problems

Poverty and unemployment; Privatization, Liberalization and Globalization; Corruption, infringement of Consumer rights; Problems of unsustainable development

Unit III: Political Problems

Regionalism; Terrorism; Assaults on democracy.

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Unit IV: Socio-Cultural/ Structural Problems:

Social prejudices and problems of inaccessibility of legal redress to women, minorities, scheduled castes and scheduled tribes, aged and disabled including; Cultural Problems – Lack of cultural humanist values in education, cultural conflicts and tensions.

References

Suggested Readings:

Banton, Michael (1996), *International Action against Racial Discrimination,* Oxford: Clarendon Press.

Baxi, Upendra (2002), *The Future of Human Rights*, New Delhi: Oxford University Press.

Davidson, Scott (1993), *Human Rights,* Buckingham: Open University Press.

Kannabiran, K. G. (2003), *The Wages of Impunity: Power, Justice and Human Rights,* New Dehi: Orient Longman.

Kothari, Smitu and Harsh Sethi (ed.) (1991), *Rethinking Human Rights: Challenge for theory and action,* Delhi, Lokayan.

Langley, Winstone E. (1999), *Encyclopedia of Human Rights Issues since 1945,* London: Fitzroy Dearborn Publishers.

Mishra, Jyotsna (2000), *Human Rights in South Asia,* Delhi: Kalpaz Publications.

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Nariman, Fali S. (2004), "Terrorism – A threat to Human Rights?", *Journal of The National Human Rights Commission,* Vol.3.

Further Readings:

O'Byrne, Darren J. (2003), *Human Rights: An Introduction,* New Delhi: Pearson.

Rehman, M. M. et al. (2000), *Human Rights and Human Development*: *Concepts and Contexts,* New Delhi: Manak Publications.

Sanajaoba, N. (2000), *Human Rights in the New Millennium,* New Delhi: Manas Publications.

South Asian HRDC (2006), *Introducing Human Rights: An Overview Including Issues of Gender Justice, Environmental and Consumer Law,* New Delhi: OUP.

UN Centre for Human Rights (1991), *Study on the Rights of Persons Belonging to Ethnic, Religious and Linguistic Minorities,* New York: UN Publication Division.

Verma, R.S. (2000), *Human Rights: Burning Issues of the World*, Volumes I, II and III, Delhi: Radiant Publishers.

Zarsky, Lyuba (ed.) (2002), *Human Rights and the Environment,* London: Earthscan Pub.

CORE PAPER 4: RESEARCH METHODS

Max. Marks: 100
Theory : 80 Marks
Int. Ass. : 20 Marks
Time : 3 Hours

NOTE: The Paper carries 80 marks. There shall be 9 questions in the question paper and the candidate shall be required to attempt 5 questions in all. The first question shall be compulsory containing 15 short answer type questions spreading over the entire syllabus and to be answered in about 25 to 30 words. The candidate shall be required to attempt any 10 short answer type questions out of 15 questions asked. Each short answer type question shall be of 2 marks. Rest of the paper carrying 60 marks shall be divided into 4 units. Each unit shall have two questions and the candidate shall be given internal choice i.e. out of the two questions asked, the candidate shall attempt one question from each of the four units.

Objectives

Human rights education at post-graduate level should include fieldwork or acquisition of first- hand knowledge of issues of human rights and duties, and some basic understanding of research methodology and techniques. The paper stresses the need to select methodologies and techniques appropriate for the investigation/reporting on the issue/problem selected.

Course Contents

Unit I: Social Research

Nature and Scope; Formulation of Research Problem; Review of Literature Hypothesis; Inductive and Deductive Methods; Research Design;

Unit II: Methodology

Methodological Orientation and logic of enquiry; Comparative Method; Historical Method; Sampling; Other research methods; Use Of Computer and Information Technology.

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Unit III: Techniques and Tools of Data Collection

Primary and Secondary Data; **Methods of Primary Data Collection:** Observation; interview; questionnaire; Case study method; Survey Method; **Sources of Secondary Data**: Document, Content analysis; Data analysis: Classification, Tabulation, Graphic representation, Uni-variate, Bi-variate and Multi-variate, discrete and continuous variables.

Unit IV: Statistical Base

Measure of Central Tendency; Mean, Mode and Median, Measure of Dispersion, Average Deviation and Standard Deviation, Chi-square (X2).

References

Suggested Readings:

Bernard, H. Russell (2000), *Social Research Methods – Qualitative and Quantitative Approaches,* New Delhi: Sage.

Bryman, lan (2001), *Social Research Methods,* New York: OUP.

Goode, W. J. and P.K. Hatt (1952), *Methods in Social Research,* New York: McGraw-Hill.

Lee, Ellis (1994), *Research Methods in the Social Sciences,* Madison: Brown and Benchmark.

Mukherjee, Partha N. (2000), *Methodology in Social Research,* New Delhi: Sage.

Nachmias, D. and C. Nachmias (1981), *Research Methods in the Social Sciences,* New York: St. Martin's Press, 2nd Edition.

Sharma, B.V.A. (ed.) (1983), *Research Methods in Social Sciences,* New Delhi: Sterling.

Further Readings:

Strauss, Anselm (1990), *Basics of Qualitative Research – Grounded Theory Procedures and Techniques,* New Delhi: Sage.

UN, (2000), *Centre for Human Rights, Human Rights Training: A Manual on Human Rights Training Methodology,* New York: UN.

UN (1991), *Centre for Human Rights: A Manual of Human Rights Reporting,* New York: World Campaign for Human Rights

M.A. HUMAN RIGHTS AND DUTIES: SECOND SEMESTER

CORE PAPER 5: DEVELOPMENT, GLOBALIZATION AND HUMAN RIGHTS

Max. Marks: 100
Theory : 80 Marks
Int. Ass. : 20 Marks
Time : 3 Hours

NOTE: The Paper carries 80 marks. There shall be 9 questions in the question paper and the candidate shall be required to attempt 5 questions in all. The first question shall be compulsory containing 15 short answer type questions spreading over the entire syllabus and to be answered in about 25 to 30 words. The candidate shall be required to attempt any 10 short answer type questions out of 15 questions asked. Each short answer type question shall be of 2 marks. Rest of the paper carrying 60 marks, shall be divided into 4 units. Each unit shall have two questions and the candidate shall be given internal choice i.e. out of the two questions asked, the candidate shall attempt one question from each of the four units.

Objectives

This paper seeks to highlight the impact of globalization and development on human rights. It deals with the role of human rights in development, general aspects of international trade and development, the role of Transnational Corporations, trade-related sanctions for human rights violations, trade, human rights and the question of sovereignty, and international trade and human rights perspective in India.

Course Contents

Unit I: Rights Based Approach to Development

Connotations of Development: Modernization and Dependency approaches; integrating the human rights approach in development.

Unit II: International Trade and Human Rights

International Trade and Development: WTO; Unequal terms of trade imposed by the Uruguay Round of GATT negotiations; Transnational Corporations (TNCs) and Human Rights violations.

Unit III: Globalization and Human Rights

Globalization: Meaning, voices for and voices against; Globalization and its impact on agriculture, labor, women, environment, culture.

Unit IV: Human Rights and the Question of Sovereignty

National control over international trade; Codes of conduct and TNCs; Human Rights Standards and international trade; International Trade and Human Rights Perspective in India – Regulation of TNCs; Impact of GATT-WTO.

References

Suggested Readings:

Bhaumik, K. (2004) *WTO: A Discordant Orchestra*, New Delhi: Sage Publications.

Baxi, Upendra (1983) "The New International Economic Order, Basic Needs and Rights: Notes towards Development of the Right to Development", *Indian Journal of International Law,* Vol.23, pp.225-45.

Baxi, Upendra (1998) "The Development of the Right to Development", in Janusz Symonides, (ed.), *Human Rights: New Dimensions and Challenges,* Sydney: UNESCO, pp. 99-114.

Centre for Development and Human Rights (2004), *The Right to Development – A Primer,* New Delhi: Sage Publications.

Chakraborty, Debashish and Khan, Ullah Amir (2008), *WTO Deadlocked: Understanding the Dynamics of International Trade*, New Delhi: Sage Publications.

Cheria, Anita et al. (2004), *Human Rights Approach to Development: Resource Book,* Banglore: Books for Change.

Gibney, J Mathew (2003), *Globalizing Rights: Oxford Amnesty Lectures 1999,* Oxford, OUP.

Hoda, Anwarul and Gulati Ashok (2008), *WTO Negotiations on Agriculture and Developing Countries*: New Delhi, OUP.

Jain, Devaki (1990) "Working with Human Rights to Development", *Mainstream,* Vol. 29, no.7, 8 December, pp.29-33.

Karmakar, Suparna, Kumar, Rajiv and Debroy, Bibek edited (2008), *India's Liberalisation Experience: Hostage to WTO*, New Delhi: Sage.

Mallik, Ross (1998), *Development, Ethnicity and Human Rights in South Asia,* New Delhi: Sage.

Menon, N. R. Madhava (1999), "State of Economic and Social Rights", in K. P. Saksena, (ed.), *Human Rights: Fifty Years of India's Independence,* New Delhi: Gyan Publishing House. pp.145-155.

Mishra, Pramod (ed.), *Human Rights in South Asia,* Delhi: Kalpaz Publications.

O'Byrne, Darren J. (2003), *Human Rights: An Introduction,* New Delhi: Pearson.

Raj, Suhendu Ranjan (1999), "Development Perspectives and Human Rights", in A.P.Vijapur and Kumar Suresh, (ed.), *Perspectives on Human Rights,* New Delhi: Manak publications, pp.267-80.

Rehman, M. M. et al. (2000), *Human Rights and Human Development: Concepts and Contexts,* New Delhi: Manak Publications.

Rosas, Allan (1995) "The Right to Development", in Asbjorn Eide et al. (ed.) *Economic, Social and Cultural Rights: A Text Book,* Doredrech: Martinus Nijhoff.

Further Readings:

Roy, Chowdhury, Subrata, (ed.) (1992), *The Right to Development in International Law*, Martinus, Nojhoff Publishers.

Saksena, K. P. (1991), "Human Rights and the Right to Development", *International Studies*, Vol. 28, no. 1, pp. 41-54.

Sanajaoba, N. (2000), *Human Rights in the New Millennium,* New Delhi: Manas Publications.

Sen Shankar (1998), *Human Rights in a Developing Society,* New Delhi: A.P.H. Publishing.

Sengupta, Arjun (2003), "Human Right to Development", *Journal of The National Human Rights Commission*, Vol.2.

Shepherd, George W. and Ved Nanda (eds.) (1985), *Human Rights and Third World Developments,* Westport: Greenwood Press.

Varma, S. K. (1998), "Development of Human Rights and Globalization of Economy", *Journal of Indian Law Institute*, Vol.40, Nos.1-4, pp.217-29.

Verma, R. S. (2000), *Human Rights: Burning Issues of the World,* Volumes I, II and III Delhi: Radiant Publishers.

Verwey, Wild (1981), "The Establishment of a New Economic Order and the Realization of the Right to Development and Welfare", *Indian Journal of International Law*, Vol. 21, no.1, pp.1-78.

Uvin, Peter (2005), *Human Rights and Development,* New Delhi: Kumarian Press.

Vadkar, Praveen (2000), *Concepts, Theories and Practice of Human Rights,* New Delhi: Rajat Publications.

Weeranmantry, C.G. (1985), "The Rights to Development", *Indian Journal of International Law*, Vol.25, pp.482-505.

M.A. HUMAN RIGHTS AND DUTIES: SECOND SEMESTER

CORE PAPER 6: HUMAN RIGHTS AND DUTIES: WOMEN AND CHILDREN

Max. Marks: 100
Theory : 80 Marks
Int. Ass. : 20 Marks
Time : 3 Hours

NOTE: The Paper carries 80 marks. There shall be 9 questions in the question paper and the candidate shall be required to attempt 5 questions in all. The first question shall be compulsory containing 15 short answer type questions spreading over the entire syllabus and to be answered in about 25 to 30 words. The candidate shall be required to attempt any 10 short answer type questions out of 15 questions asked. Each short answer type question shall be of 2 marks. Rest of the paper carrying 60 marks, shall be divided into 4 units. Each unit shall have two questions and the candidate shall be given internal choice i.e. out of the two questions asked, the candidate shall attempt one question from each of the four units.

Objectives

This paper elaborates the following aspects of Women's Rights and Duties: historical, philosophical and social perspectives, status of women in contemporary Indian society, international norms for protection of women, the status of women under the Indian Constitution, special laws and policies for protection of women in India, and institutional mechanisms for protection of women in India. This paper also discusses the status of the child in Indian society, international norms on the rights of the child, protection of the child under the Indian Constitution, special laws and policies in India, and the institutional mechanism for protection of the child.

Course Content

Unit I: Status of Women and Gender Concerns in India

Status Of Women in Contemporary Indian Society – Poverty, illiteracy, lack of independence, oppressive social customs and gender bias; Violence against and abuse of women in public and private domains; Constitutional Provisions and Laws for the Protection of women, PC & PNDT Act 1994, Protection of Women from Domestic Violence Act, 2005; Women and public policy: Engendering public policy, Gender Budgeting; Issues of current public debate: Political Rights of Women (reservations and protection of women), Personal laws and the Status of women, National Commission for Women and the State Commissions

Unit II: International Measures for Protection of Women

Convention on Elimination of All Forms of Discrimination against Women 1979, Convention for the Suppression of the Traffic in Persons and of the Exploitation of the Prostitution of Others 1949, The Vienna Conference on Human Rights 1993, Declaration on the Elimination of Violence against Women 1993, Declaration on the Participation of Women in Promoting International Peace and Cooperation 1982; Beijing Platform for Action (BPFA); Protection of Women in Armed Conflicts.

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Unit III: Status of Child in Contemporary Indian Set-Up

Impact of problems of poverty and illiteracy; Social and cultural practices regarding girl child: feticide, infanticide, child marriage; Child labor, Child abuse inside and outside homes; Trafficking in children; Street children; Special Constitutional Provisions and Laws for the protection of children; Juvenile Justice Act; National Commission on the Protection of Child Rights (NCPCR)

Unit IV: International Norms for Protection of the Child

ILO Conventions on restrictions and Prohibition on Child labor, ILO Convention on Child Labor 1999; UN Convention on the Rights of the Child 1989 & its Optional Protocols to curb Child Prostitution and Child Pornography 2000, World Summit for Children: Declaration and Plan of Action.

References

Suggested Readings:

Agosin, Marjorie (2003), *Women, Gender, and Human Rights: A Global Perspective,* New Delhi: Rawat.

Biswal, Tapan (2006), *Human Rights, Gender and Environment,* New Delhi: Viva.

Centre for Development and Human Rights (2004), *The Right to Development – A Primer,* New Delhi: Sage Pub.

Detrick, S. (1992), *The United Nations Convention on the Rights of the Child*, (Dordrecht: Martinus Nijhoff.

Diwan, Paras and Peeyushi Diwan (1994), *Children and Legal Protection*, New Delhi: Deep and Deep.

Kaushal, Rachna (2000), *Women and Human Rights in India,* New Delhi: Kaveri Books.

Khan, Mumtaz Ali (1998), *Women and the Human Rights,* New Delhi: Commonwealth.

Kaushik, Vijay (1999), *Women's Movements and Human Rights,* Jaipur: Pointer Publishers.

Khanna, S.K. (1998), *Children and the Human Rights,* New Delhi: Commonwealth.

Further Readings:

Kumar, Bindal (2000), *Problems of Working Children,* New Delhi: APH Publications.

Langley, Winstone E. (1999), Encyclopedia of Human Rights Issues since 1945 London: Fitzroy Dearborn Publishers.

M.A. HUMAN RIGHTS AND DUTIES: SECOND SEMESTER

Mani, V.S. (1998), *Human Rights in India: An Overview,* New Delhi: Institute for the World Congress on Human Rights.

Mukhopadhyay, S. (ed.) (1998), *In the Name of Justice: Women and Law in Society* New Delhi: Manohar.

Mishra, Jyotsana (2000), *Women and Human Rights,* New Delhi: Kalpaz Pub.

Nagendra Singh (1986), *Enforcement of Human Rights,* Calcutta: E L House.

Nirmal, C.J. (1999), *Human Rights in India,* New Delhi: Oxford.

Pachauri, S.K. (1999), *Children and Human Rights,* Delhi: APH Publications.

Pachauri, S.K. (1999), *Women and Human Rights,* New Delhi: APH Publications.

Sanajaoba, N. (2000), *Human Rights in the New Millennium*, New Delhi: Manas Publications.

Saxena, Shobha (1999), *Crimes against Women and Protective Laws,* New Delhi: Deep and Deep.

South Asian HRDC (2006), *Introducing Human Rights: An Overview Including Issues of Gender Justice, Environmental and Consumer Law,* New Delhi: OUP.

Symonides, Janusz and Vladimor Volodin (1999), *Human Rights of Women: A Collection of International and Regional Normative Instruments,* Paris: UNESCO.

UN Centre for Human Rights (1996), *The Rights of the Child,* Geneva: World Campaign for Human Rights.

UN (1999), *Convention on the Elimination of all Forms of Discrimination against Women,* New York: UN Department of Public Information.

UN, (1995), *World Conference on Human Rights: The Vienna Declaration and Programme of Action,* New York: UN.

Uvin, Peter (2005), *Human Rights and Development,* New Delhi: Kumarian Press.

Verma, R.S. (2000), *Human Rights: Burning Issues of the World*, Volumes I, II and III Delhi: Radiant Publishers.

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CORE PAPER 7: ENVIRONMENT, HUMAN RIGHTS AND DUTIES

Max. Marks: 100
Theory : 80 Marks
Int. Ass. : 20 Marks
Time : 3 Hours

NOTE: The Paper carries 80 marks. There shall be 9 questions in the question paper and the candidate shall be required to attempt 5 questions in all. The first question shall be compulsory containing 15 short answer type questions spreading over the entire syllabus and to be answered in about 25 to 30 words. The candidate shall be required to attempt any 10 short answer type questions out of 15 questions asked. Each short answer type question shall be of 2 marks. Rest of the paper carrying 60 marks, shall be divided into 4 units. Each unit shall have two questions and the candidate shall be given internal choice i.e. out of the two questions asked, the candidate shall attempt one question from each of the four units.

Objectives

This paper focuses on the interrelationship between environment and human rights and duties. It covers the topics of conceptual aspects, the right to clean environment, an international perspective, issues of environmental protection in developing countries, supplementary rights and duties, environment versus development, emerging concepts, and the threats to Indian environment.

Course Contents

Unit I: Environmental Concerns

Concern for Environment: Historical Perspective; Right to Clean Environment: Content and Scope; Environment versus Right to Development; Culprits and Victims of Development and Mega Projects; Hazardous Waste Treatment; International Perspective (From Stockholm to Rio and Beyond); International Conventions on the Protection of Environment; Debate on Social Clause and WTO.

Unit II: Issues of Environmental Protection in Developing Countries

Preservation of Natural Resources: Indigenous People, Tribals and Forest Dwellers; City Dwellers, Villagers and Other living Species; Dumping of Waste and Discarded Technology; Environmental Education; Public Participation: Environmental Democracy.

Unit III: Environment and the Indian Scenario

Pollution Control Mechanisms in India: Inaction and Mis-action; NGOs; Issues of Liability and Insurance; Courts: Process and Remedies; Threats to Indian

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Environment: Forest Denudation, Pollution of River Systems, Indiscriminate Industrial Explosion, Bio-diversity Imbalances.

Unit IV: Emerging Concepts

Common Heritage Principle; Public Trust; 'Polluter Pays' Principle; Precautionary Principle; Intergenerational Equity; Sovereign Equality; Duties towards the Unborn, Animals and Plants; Duties towards Future Generations; Code of Environmental Culture and Ethics.

References

Suggested Readings:

Balasubramanium, V. (1998), "Environment and Human Rights: A New Form of Imperialism", *Economic and Political Weekly*, Vol.33, No.8, 22-27 Feb., pp.389-90.

Banerjee, Preeta M. and Shastri, Vanita, [ed], (2010), *Social Responsibility and Environmental Sustainability in Business: How Organizations Handle Profits and Social Duties,* New Delhi: Sage.

Batra, J.C. (1994), "Natural Resource Conflicts and the Right to Safe Environment", in K. P. Saksena, (ed.), *Human Rights: Perspectives and Challenges,* New Delhi: Lancers Books, pp. 222-228.

Bhatt, S. (1999), "Human Rights: A Perspective from Environmental Law", in A. P. Vijapur and Kumar Suresh (eds.), *Perspectives on Human Rights,* New Delhi: Manak Publications, pp.244-250.

Birnie, Patricia and Allan Boyle (1992), *International Law and the Environment,* Oxford: Clarendon.

Biswal, Tapan (2006), *Human Rights, Gender and Environment,* New Delhi: Viva.

Further Readings:

Centre for Development and Human Rights (2004), *The Right to Development – A Primer,* New Delhi: Sage Pub.

Chandrasekharan, N. S. (1998), "Environmental Protection: Two Steps Forward, One Step Back," *Journal of Indian Law Institute*, Vol.30, No.2, Apr.-June, pp.184-95.

Cheria, Anita et al. (2004), *Human Rights Approach to Development: Resource Book,* Banglore: Books for Change.

Davidson, Scott (1993), *Human Rights. Buckingham*: Open University Press.

Desai, Bharat (1993) "Enforcement of the Right to Environmental Protection through Public Interest Litigation in India", *Indian Journal of International Law*, Vol. 33, pp.27-40.

Garner, Robert, [ed], (1996) *Animal Rights: the Changing Debate*, Houndmills, Macmillan Press.

Hargopal, G. (1999), *Political Economy of Human Rights,* Hyderabad: Himalaya.

Langley, Winstone E. (1999), *Encyclopedia of Human Rights Issues since 1945,* London: Fitzroy Dearborn Publishers.

Mahawal, S. (1992), "Right to Safe Environment", *World Focus*, Vol.13, No.2, March, pp.15-18.

Pathak, R. S. (1988), "Human Rights and Development of the Environmental Law in India", *Commonwealth Law Bulletin*, Vol. 11, pp.1171-80.

Regen Tem and Singer, Peter, (ed.) (1976), *Animal Rights and Human Obligations,* Englewood Cliffs, Prentice-Hall.

Sachs, Aaron (1995) Eco-Justice: Linking Human Rights and the Environment. Washington D.C.: Worldwatch Institute.

Sanajaoba, N. (2000), *Human Rights in the New Millennium,* New Delhi: Manas Publications.

Singh, Nagendra (1987), "Right to Environment and Sustainable Development as a Principle of International Law", *Journal of Indian Law Institute*, pp.289-320.

Singh, Rajkumar Deepak (1999), "Response of Indian Judiciary to Environmental Protection", *Indian Journal of International Law*, Vol.39, No.3, July-Sept., pp.447-63.

South Asian HRDC (2006), *Introducing Human Rights: An Overview Including Issues of Gender Justice, Environmental and Consumer Law,* New Delhi: OUP.
Uvin, Peter (2005), Human Rights and Development, New Delhi: Kumarian Press.

Verma, R.S. (2000), *Human Rights: Burning Issues of the World*, Volumes I, II and III ,Delhi: Radiant Publishers.

Zarsky, Lyuba (ed.) (2002), *Human Rights and the Environment,* London: Earthscan Pub.

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CORE PAPER 8: PROJECT REPORT BASED ON FIELDWORK

Max. Marks : 100
Project Report : 80 Marks
Viva- Voce : 20 Marks

The student shall be required to write a project report based on the case study of any aspect of a human rights and duties problem/situation. He/she shall focus on a particular problem area and prepare a report based on the study of the situation, its causes, and solutions.

The students may be provided with a list of potential topics or the topics may be selected in consultation with the teachers.

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Core Paper 9: SCIENCE AND TECHNOLOGY, HUMAN RIGHTS AND DUTIES

Max. Marks: 100
Theory : 80 Marks
Int. Ass. : 20 Marks
Time : 3 Hours

NOTE: The Paper carries 80 marks. There shall be 9 questions in the question paper and the candidate shall be required to 5 questions in all. The first question shall be compulsory containing 15 short answer type questions spreading over the entire syllabus and to be answered in about 25 to 30 words. The candidate shall be required to attempt any 10 short answer type questions out of 15 questions asked. Each short answer type question shall be of 2 marks. Rest of the paper carrying 60 marks, shall be divided into 4 units. Each unit shall have two questions and the candidate shall be given internal choice i.e, out of the two questions asked, the candidate shall attempt one question from each of the four units.

Objectives

This paper discusses the impact of developments in science and technology on human rights and duties. It contains some conceptual aspects of impact of science and technology on human life and society and also focuses on certain specific human rights issues identified on the basis of this impact, such as those relating to the right to human dignity, freedom of information, thought and expression; and rights to food, health, development, clean environment and peace.

Course Contents

Unit I: Concepts and Perspectives on Science and Technology

Concept of science and technology and its application as a duty towards furtherance of human and social welfare, scientific temper; 'Quality' of life; Impact of Science and Technology- Positive role of science and technology: material comforts, food, education, health and personal well-being; Negative role of science and technology: neutral character of science and technology, the concept of 'dual use' technologies; Impact of unbridled use of natural resources; development of means and methods of violence and war, new torture methods, methods of rights deprivations.

Unit II: Technology and the Right to Food, Right to Information and Right to Health

Right To Food – science and technology and food production, storage, security; impact of bio-technology on agriculture, positive and negative; Revolution in information and Communication technology; freedom of Information and entertainment media; Right To Health – Improvement of individual and community health and hygiene; Experiments on living beings; Community Health as a public service industry: Shift in character as a commercial industry due to rise of multinationals, pharmaceutical industries in the global era, changing role of government.

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Unit III: Technology and Right to Clean Environment; Right to Peace

Right To Clean Environment and Public Safety; Right To Peace – Disarmament, eventual destruction of all weapons, means and methods of warfare and violence, problems of dual use technologies.

Unit IV: Right to Human Dignity: Some Duty bound Ethical and Legal Issues

Developments in biotechnology: human cloning and stem cell research, feticide and abortion, assisted reproductive technologies: in-vitro fertilization and surrogate parenthood, Organ transplantation and sale of human organs, human performance augmenting drugs and technologies (e.g., use of steroids in sports, hormones, viagra-like drugs); Life sustaining technologies: artificial organs, kidney dialysis, ventilators life sustaining drugs; Cyber Crimes, doping; Right to die in dignity and peace: euthanasia.

References

Suggested Readings:

Amarasekara, Kumar (1998), "Autonomy, Paternalism and Discrimination :The Darker Side of Euthanasia", in Antony Anghie and Garry Sturgess, (eds.), *Legal*

Visions of the 21st Century: Essays in Honour of Judge Christopher Weeramantry, The Hague: Kluwer, pp. 261-282.

Bankowski, I., (ed.) (1993), *International Ethical Guidelines for Biomedical Research Involving Human Subjects,* Geneva: WHO.

Johnston, Ann et al. (eds.) (1986), *New Technologies and Development,* Geneva: UNESCO.

Michael, James (1994), *Privacy and Human Rights: An International and Comparative Study with Special Reference to Documents in Information Technology,* Paris: UNESCO.

Mukherjee, Sipra G. (1985), "Promotion of Human Rights and Science Education", in K. P. Saksena, (ed.), *The Teaching about Human Rights. New Delhi*: HURITER, pp.55-60.

Nawaz, M. K. (1985), "Law, Human Rights and Computer", *Indian Journal of International Law,* Vol.25, Nos. 3 and 4, July-Dec., pp.612-20.

Satyamala, C. (1998), "Hazardous Contraceptives and the Right to Life", *Journal of the Indian Law Institute, V*ol. 40, pp. 174-199.

Further Readings:

Sisskind, Charles (1973), *Understanding Technology,* New York: Feffer and Simons.

UN, (1982), *Human Rights and Scientific and Technological Developments,* New York: UN Department of Public Information.

WHO, (1975), *Protection of Human Rights in the Light of Scientific and Technological Progress in Biology and Medicine,* Albany: WHO.

Zinian, John et al. (eds.) (1986), *The World of Science and the Rule of Law,* Oxford University Press.

CORE PAPER 10: HUMAN RIGHTS AND DUTIES FOR THE AGED AND THE DIFFERENTLY ABLED

Max. Marks: 100
Theory : 80 Marks
Int. Ass. : 20 Marks
Time : 3 Hours

NOTE: The Paper carries 80 marks. There shall be 9 questions in the question paper and the candidate shall be required to attempt 5 questions in all. The first question shall be compulsory containing 15 short answer type questions spreading over the entire syllabus and to be answered in about 25 to 30 words. The candidate shall be required to attempt any 10 short answer type questions out of 15 questions asked. Each short answer type question shall be of 2 marks. Rest of the paper carrying 60 marks, shall be divided into 4 units. Each unit shall have two questions and the candidate shall be given internal choice i.e. out of the two questions asked, the candidate shall attempt one question from each of the four units.

Objectives

This paper deals with the topics of conceptual perspectives, international norms on the rights of the aged and the disabled, protection of the aged and the disabled under the Indian legal system and institutional mechanisms for such protection.

Course Contents

Unit I: Aging and Ageism: Conceptual Perspective

Aging – Definition, Problems of the aged: medical, economic, social, psychological; Theoretical perspectives: disengagement, activity, human development, continuity, exchange, symbolic inter-actionist; Ageism – definition, causes, cross-cultural scenario; Poverty, illiteracy, breakdown of old social and family institutions; Impact of improvements in health care on mortality; the economics of aging.

Unit II: Differently Abled

Definitions, estimates and causes; Approaches to differently Abled: the Charity Model, the Bio-Centric Model, the Functional Model, the Human Rights Model. Social taboos against differently Enabled.

Unit III: International Norms and Institutional Mechanisms for Protection of the Aged and the Differently Enabled

UN General Assembly Declaration on the Rights of the Disabled Persons 1975, Declaration on the Mentally Retarded Persons 1971, Coordinating Committee of National Institutions (1993) Resolution, for the Promotion and Protection of Rights of the Disabled; Human rights Convention on the Rights of the Disabled; World Assembly on the Ageing 1982 and 2002.

Unit IV: Protection of the Aged and the Differently Abled under the Indian System

Laws and Policies: Persons with Disabilities (Equal Opportunities, Protection of Rights and Full Participation) Act; Mental Health Act 1993; Maintenance and Welfare of Parents and Senior Citizens Act, 2007.

References

Suggested Readings:

Barnes, C.G., G. Mercer and T. Shakespeare (1999), *Exploring Disability: A Sociological Analysis,* Cambridge: Polity Press.

Degener, Therasia and Yolan Koster-Dreese (1995), *Human Rights and Disabled Persons: Essays and Relevant Human Rights Instruments,* Dordrecht: Martinus Nijhoff.

Erb, Susan and Barbara Harris-White (2002), *Outcast from Social Welfare: Adult Disability, Incapacity and Development in Rural South India,* Banglore: Books for Change, A Unit of Action Aid Karnataka Projects.

Jacob, Alice (1998), "Towards a Regime of Rights of Older Persons", *Journal of Indian Law Institute*, Vol.40, Nos.1-4, pp.311-16.

Karna, G. and K. Gahharana (1994), "Rights of Disabled Persons", in K. P. Saksena (ed.), *Human Rights: Perspective and Challenges,* New Delhi: Lancer Books , pp.416-30.

Karna, G. N. (2001), *Disability Studies in India: Retrospect and Prospect,* New Delhi: Gyan Publishing House.

Further Readings:

Karna, G. N. (1999), *United Nations and the Rights of Disabled Persons: A Study in Indian Perspective,* New Delhi: APH Publishing Co.

Quinn, Gerard and Theresia Degener (2002), *Human Rights and Disability: The Current Use and Future Potential of United Nations Human Rights Instruments in the Context of Disability,* New York: UN.

Rioux, M. (2001) "Bending Towards Justice" in L. Barton (ed.), *Disability, Politics and the Struggle for Change,* London: David Fulton.

UN, (1998), *Internally Displaced Persons Compilation and Analysis of Legal Norms,* Geneva: UN High Commissioner for Human Rights, UN Publication Division.

UN, (1993), *Human Rights and Disabled Persons,* Geneva: World Campaign for Human Rights.

CORE PAPER 11/15: FIELDWORK BASED DISSERTATION

Please read the foot note on page 3

Core Paper 12: The candidate has to opt for any ONE of the following Optional Papers

Optional Paper I (a): WORKING CLASS, HUMAN RIGHTS AND DUTIES

Max. Marks : 100
Theory : 80 Marks
Int. Ass. : 20 Marks
Time : 3 Hours

NOTE: The Paper carries 80 marks. There shall be 9 questions in the question paper and the candidate shall be required to attempt 5 questions in all. The first question shall be compulsory containing 15 short answer type questions spreading over the entire syllabus and to be answered in about 25 to 30 words. The candidate shall be required to attempt any 10 short answer type questions out of 15 questions asked. Each short answer type question shall be of 2 marks. Rest of the paper carrying 60 marks, shall be divided into 4 units. Each unit shall have two questions and the candidate shall be given internal choice i.e. out of the two questions asked, the candidate shall attempt one question from each of the four units.

Objectives

Labor welfare has for long been one of the crucial areas of human rights and duties. This paper divided into four units, deals with conceptual issues, status of the working class, workers' rights and duties, emerging problems, conflicting rights, international standards, Indian framework, and enforcement agencies.

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Course Contents

Unit I: Working Class: Conceptual Issues

Definition of Working Class, Classification; Status of Working Class: Women; Children; Casual Workers: Agricultural Labor and Migrant Workers; Bonded Labor.

Unit II: State Ideology and Position of Working Class

Working class movement; From Laissez Faire through Welfare State to Globalizing State; Working class Rights, Work with Equality and Dignity, Trade Unionism and its Development.

Unit III: Labor Welfare Problems: Employers' Responsibility and State Duty

Health Hazards: Accidents, Occupational Diseases; Social Security; Collective Bargaining; Workers' Participation in Management; Industrial Discipline, Retrenchment, Termination and Displacement; Labor Safety, Work Culture and Welfare Measures; Industrial Conflicts and Insecurity; Impact of Technological Developments; Conflicting Rights: Worker's Benefit v. Employer's Inconvenience, The Right to Strike, Lockout and Closure of Industry.

Unit IV: International Standards and obligations of the Indian State

International Framework: Role of International Labor Organization (ILO) and ILO Labor Standards; Debate on Social Clause and WTO; Emerging Rights and Duties; Code of International Industrial Discipline; Role of International Labor Agencies; Indian Framework: Constitutional Protection; Workers' Rights and Duties; Employers' Responsibilities and Duties; Dispute Settlement Mechanisms. Institutional Framework for Promotion of Labor Welfare: National - State machinery, Workers organizations.

References

ILO (1974), *Migrant Workers,* Geneva: International Labor Office.

ILO, (1970), *Trade Union Rights and Their Relation to Civil Liberties,* Geneva: International Labor Office

Jain, Mahavir (1997), *Bonded Labor Justice through Judiciary,* New Delhi: Manak Publications.

Jenks, C.W. (1960), *Human Rights and International Labor Standards,* London: Stevens.

Kumar, Bindal (2000), *Problems of Working Children,* New Delhi: APH Publications.

Mehta, P.L. (1996), *Child Labor and the Law,* New Delhi: Deep and Deep.

Prakash, S.S. (1990), *Bonded Labor and Social Justice,* New Delhi: Deep and Deep.

Sahoo, Umesh Ch. (1990), "Child Labor and Legislation", *Economic and Political Weekly*, Vol. XXV, No. 46, 17 November, pp.2531-34.

Saksena, Anu (1999), *Human Rights and Child Labor in Indian Industries,* Delhi: Shipra Publications.

Saksena, K.P. (1999), "Recent Supreme Court Judgment on Child Labor: A Critique", in K. P. Saksena (ed.), *Human Rights: Fifty Years of India's Independence,* New Delhi: Gyan Publishing House, pp.73-78.

Sankaran, Kamala (1998), "Human Rights and the World of Work", *Journal of Indian Law Institute,* Vol. 40, Nos. 1-4, pp.284-94.

Saxena, Anu, (2002), *Human Rights and Child Labor in Indian Industries,* New Delhi: Shipra.

Further Readings:

Sharma, A.K. (1995), "Human Rights Violations of Street Children and Child Labor in India", in B. P. Singh Sehgal (ed.), *Human Rights in India: Problems and Perspectives,* New Delhi: Deep and Deep, pp.187-91.

Singh, S.K., (1994), *Bonded Labor and the Law,* New Delhi: Deep and Deep.

UN, (1996), *The Right to Migratory Workers,* Geneva: UN Centre for Human Rights, World Campaign for Human Rights.

Valticos, N. (1979), *International Labor Law,* Netherlands: Kluwer.

OPTIONAL PAPER I (b): INTERNATIONAL HUMANITARIAN AND REFUGEE LAWS

Max. Marks : 100
Theory : 80 Marks
Int. Ass. : 20 Marks
Time : 3 Hours

NOTE: The Paper carries 80 marks. There shall be 9 questions in the question paper and the candidate shall be required to attempt 5 questions in all. The first question shall be compulsory containing 15 short answer type questions spreading over the entire syllabus and to be answered in about 25 to 30 words. The candidate shall be required to attempt any 10 short answer type questions out of 15 questions asked. Each short answer type question shall be of 2 marks. Rest of the paper carrying 60 marks, shall be divided into 4 units. Each unit shall have two questions and the candidate shall be given internal choice i.e. out of the two questions asked, the candidate shall attempt one question from each of the four units.

M.A. HUMAN RIGHTS AND DUTIES: THIRD SEMESTER

Objectives

This paper is in four units, which seeks to highlight the conceptual and substantive aspects of humanitarian problems of armed conflict and refugees. It also focuses on the international humanitarian law and the international refugee law.

Course Contents

Unit I: Development and Sources of International Humanitarian Law (IHL)

Origin sources and development of IHL: Hague Conventions (1899 and 1907) and Geneva Conventions (1949, its Protocols of1977 and 2005); The Non-International Armed Conflicts: Common Article 3 and the Additional Protocol-II; National perspectives on IHL; Convergence between International Human Rights and Humanitarian Law

Unit II: Implementation of International Humanitarian Law (IHL)

Implementation of IHL: Mechanisms for Prevention, Monitoring and enforcement; 'Humanitarian' Intervention versus State Sovereignty; ICRC as implementing agency: Role and Principles; International Criminal Court & Other Tribunals (ICTY & ICTR): Structure and Working; Doctrine of military necessity versus the principles of humanity; Role of IHL in non-international armed conflicts; Role of International Red Cross and NGOs; Implementation and Enforcement of IHL – Concept of Protecting Power, role of United Nations, International Criminal Courts and Tribunals, Unilateralism: 'humanitarian' intervention versus state sovereignty, Humanitarian assistance.

Unit III: International Refugee Law

Origins and Development of International Refugee Law : The History of International Refugee Law; Determination of Refugee Status under the Refugee Convention 1951 and Protocol 1967;Protection under International Law: Right of Non-Refoulement, Right to Asylum; UNHCR and Refugee Protection; Special Problems of Protection of Refugee Women and Children; Solution to Refugee Problem – Resettlement in Third Country, Repatriation: Voluntary or Forced, Local assimilation, International Burden sharing,; Internally Displaced Persons: UN Guiding Principles on Internal Displacement 1998; Ultimate solution: tackling the root causes; Relationship between IHL, Refugee Law and Human Rights Law

Unit IV: Protection in India

Indian critique of UNHCR and the Convention – Protection without legislation: case law, Status of refugees in India under UNHCR.

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References

Suggested Readings:

Bhuiyan Md. Jahid Hossain, Louise Doswald Beck & Azizur Rahman Chowdhury. 2009 . *International Humanitarian Law - An Anthology*. Nagpur, Lexis Nexis, Butterworths Wadhwa.

Bond, B.E. Harrel (1985), *Imposing Aid: Emergency Assistance to Refugees,* New York: Oxford University Press.

Chakrabarty, Manik (1998), *Human Rights and Refugees: Problems, Law and Practices,* New Delhi: Deep and Deep Publications.

Chimni, B.S. (2000), *International Refugee Law: A Reader,* New Delhi: Sage Publications.

Dominice, Christinians (1982), "The Implementation of Humanitarian Law", in Karel Vasak, (ed.), *The International Dimensions of Human Rights*. Vol. I Paris: UNESCO, pp.427-43.

Geza, Herczegh (1984) Development of International Humanitarian Law. Budapest: Akademiai Kiado.

Gill, Goodwin (1996), *The Refugee in International Law,* Oxford: Oxford University Press

Grahl-Madsen Atle (1972), *The Status of Refugees in International Law,* Leiden: A.W. Sijthoff.

Hathaway, James C. (1991), *The Law of Refugee Status,* Toronto: Butterworths.

Hingorani, R.C. (ed.) (1991), *Humanitarian Law,* New Delhi: Oxford and IBH Publishing Co.

Further Readings:

Loescher, Gil and L. Mohan, (eds.), (1989), *Refugees and International Relations,* Oxford: Oxford University Press.

Mani, V.S. (1993), "Humanitarian Intervention and International Law", *Indian Journal of International Law*, Vol.33, pp.1-26.

Mani, V.S. (1999), "The International Court and the Humanitarian Law", *Indian Journal of International Law*, Vol.39, pp.32-46.

Mani V.S. (2007), *Handbook of International Humanitarian Law in South Asia,* New Delhi, Oxford University Press.

M.A. HUMAN RIGHTS AND DUTIES: THIRD SEMESTER

Mani, V.S. (2001), "International Humanitarian Law: An Indo-Asian Perspective," *International Review of the Red Cross*, Vol. 83, No. 841, March, pp. 59-75.

Meron, Theodor (1983), "On the Inadequate Reach of Humanitarian and Human Rights Laws and the Need for a New Instrument", *American Journal of International Law*, Vol.77, pp.589-606.

Meron, Theodor (1993), "Rape as a Crime under International Humanitarian Law", *American Journal of International Law*, Vol.87, pp.424-28.

Muntarbhorn, Vitit (1993), *The Status of Refugees in Asia,* Oxford: Clarendon Press.

Patil, V. T. and P. R. Trivedi (2000), *Refugees and the Human Rights,* Delhi: Authorspress.

Saxena, J. N. (1994) "Problems of Refugees in Developing Countries and the Need for International Burden-Sharing" in K. P. Saksena, (ed.), *Human Rights: Perspective and Challenges,* New Delhi: Lancers Books, pp.354-68.

Sehgal, B. P. Singh (1989), "Role of the International Committee of the Red Cross in the Development of International Humanitarian Law", *Indian Journal of International Law*, Vol.29, pp. 52-61.

Sinha, Manoj K. (2000), *Basic Documents on International Human Rights and Refugee Laws,* New Delhi: Manak Publications.

South Asia Human Rights Documentation Centre (2008), *Human Rights and International Humanitarian Law*. New Delhi, OUP.

OPTIONAL PAPER I (C): DISADVANTAGED SECTIONS/GROUPS AND HUMAN RIGHTS AND DUTIES

Max. Marks : 100
Theory : 80 Marks
Int. Ass. : 20 Marks
Time : 3 Hours

NOTE: The Paper carries 80 marks. There shall be 9 questions in the question paper and the candidate shall be required to attempt 5 questions in all. The first question shall be compulsory containing 15 short answer type questions spreading over the entire syllabus and to be answered in about 25 to 30 words. The candidate shall be required to attempt any 10 short answer type questions out of 15 questions asked. Each short answer type question shall be of 2 marks. Rest of the paper carrying 60 marks, shall be divided into 4 units. Each unit shall have two questions and the candidate shall be given internal choice i.e. out of the two questions asked, the candidate shall attempt one question from each of the four units.

M.A. HUMAN RIGHTS AND DUTIES: THIRD SEMESTER

Objectives

This paper focuses on the need for protection of the socially and/or economically disadvantaged sections of the Indian society such as the Scheduled Castes and Tribes, and other similarly placed communities. Its four units encompass topics on the disadvantaged people's historical background, status in Indian society, constitutional protection, special laws and policies, institutional mechanisms for protection of SC/ST and OBCs, and relevant international standards.

Course Contents

Unit I: Concepts, History and Issues

Disadvantaged Group – Concept; Historical background: Feudalism, caste system and the socio-economic situation; Social and economic deprivations of the lower rungs of society through history - British rule and its impact on these communities; Issues of social and economic inequalities in Indian society; Role of social reformers: Gandhi, Ambedkar and others

Unit II: Status of Disadvantaged Sections/Groups in Contemporary Indian Society

Issues of identification of Scheduled Castes/Scheduled Tribes, Dalits, other backward classes and minorities: Deprivations and atrocities, poverty, illiteracy and unemployment, Economic and social inequalities, Issues of land rights, rural indebtedness, impact of environment protection laws including forest laws on tribal communities; Access to fruits of development; Bonded labor, exploitation, issues of human dignity; Caste wars; Politics of caste and class.

Unit III: Constitutional Protection

Fundamental Rights and Directive Principles under the Constitution; Special protection under Article 15 (4), Article 16 (4) & (4-A), Article 17, Article 29(1), Article 46, Articles 334 335, 338, 339, 340, 341, & 342, Fifth and Sixth Schedules; Special Protection: Laws And Policies; Special Laws: Protection of Civil Rights Act 1955, Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act 1989, Employment of Manual Scavengers and Construction of Dry Latrines (Prohibition) Act 1999; Other relevant legal provisions; Policies of Government: Reservations, quotas, special drives and schemes

Unit IV: Institutional Mechanisms for Protection of SC/ST, And OBCs

Constitutional Mechanisms: Legislature, Executive, Judiciary; National Commissions, State Commissions; Non-Governmental Organizations; The Information Media; Role of education; International Norms And Standards Relating To Tribal And Other Indigenous Groups: UN Declaration on the Indigenous Peoples 1995, UN Voluntary Fund for Indigenous Populations 1985; ILO Convention No. 169 concerning Indigenous and Tribal Communities 1989.

References

Suggested Readings:

Bhargava, G.S. and R. M. Pal, (eds.) (2000), *Human Rights of Dalits: Societal Violation,* New Delhi: Gyan Publishing House.

Bhatia, K. L. et al. (1995), *Social Justice of Dr. B.R. Ambedkar,* New Delhi: Deep and Deep.

Choedon, Yeshi (1994), "Ethnic, Social and Religions Conflicts: Rights of Minorities", in K.P.Saksena (ed.), *Human Rights: Perspective and Challenges,* New Delhi: Lancers Books, pp. 282-90.

Giridhar, Gomango (1987), *Constitutional Provisions for the SCs and STs,* New Delhi: Himalaya Publishing House.

Kazimi, M. R. (1996), "Judiciary and the Protection of the Right of the Minorities in India", in Mumtaz Ali Khan (ed.), *Human Rights and the Dalits,* New Delhi: D.K. Publishers.

Narang, A.S. (1999), "Debate on Minority Rights", in A. P. Vijapur and Kumar Suresh, (ed.), *Perspectives on Human Rights*, New Delhi: Manak Publications, pp.163-73.

Further Readings:

Pillai, R.V. (1999), "Developmental Issues in Human Rights with Reference to the Scheduled Castes and the Scheduled Tribes", in A. P. Vijapur and Kumar Suresh, (eds.), *Perspectives on Human Rights,* New Delhi: Manak Publications, pp.152-62.

Reddy, Jagmohan (1981), *Minorities and the Constitution,* Bombay: Bombay University Press.

Sheth, D. L. and Gurpreet Mahajan, (eds.), *Minority Identities and the Nation State,* New Delhi: Oxford University Press.

Sinha, S.P. (1993), *Conflict and Tension in Tribal Society,* New Delhi: Concept Publishing Corporation.

Thamilmaran, V.T., (1991), "Ethnic, Social and Religious Conflicts: Rights of Minorities", in Thornberry, Patrick (ed.), *International Law and the Rights of the Minorities,* Oxford: Clarendon Press.

UN Center for Human Rights (1991), *Study on the Rights of Persons Belonging to Ethnic, Religious and Linguistic Minorities,* New York: UN Publication Division.

UN Centre for Human Rights (1997), *The Rights of Indigenous Peoples,* Geneva: World Campaign for Human Rights.

UN High Commissioner for Human Rights (1997), *Protection of the Heritage of Indigenous People*. Geneva: UN Publication Division.

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CORE PAPER 13: CIVIL SOCIETY, SOCIAL MOVEMENTS AND HUMAN RIGHTS AND DUTIES IN INDIA

Max. Marks: 100
Theory : 80 Marks
Int. Ass. : 20 Marks
Time : 3 Hours

NOTE: The Paper carries 80 marks. There shall be 9 questions in the question paper and the candidate shall be required to attempt 5 questions in all. The first question shall be compulsory containing 15 short answer type questions spreading over the entire syllabus and to be answered in about 25 to 30 words. The candidate shall be required to attempt any 10 short answer type questions out of 15 questions asked. Each short answer type question shall be of 2 marks. Rest of the paper carrying 60 marks, shall be divided into 4 units. Each unit shall have two questions and the candidate shall be given internal choice i.e. out of the two questions asked, the candidate shall attempt one question from each of the four units.

Objective

This paper aims at a sociological study of human rights and duties in India. It encompasses a conceptual perspective, impact of social and religious reforms movements and human rights, political and ecological movements and human rights, and the role of international and national institutions in promoting human rights.

Course Content

Unit I: Conceptual Perspectives

Civil Society and Social Movements: Concepts, Typology, Ideology, Organization and role; Mobilization leadership; Social Movements as promoters of social change and Human Rights

Unit II: Social and Religious Reform Movements and Human Rights

Reformist Movement in Colonial India, Dalit Movements; Tribal Movements; Women's Movements; New Social Movements

Unit III: Political and Environment Movements and Human Rights

Political Movements – Freedom Movements; Peasant Movement; Regional and Ethnic identity Movements (Separatist & Terrorist Movement); Sarvodaya Movement and Land Reform Movements; Trade Union Movements; Students Unrest; Ecological/Movements – Chipko Movement; Narmada Bachao Andolan.

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Unit IV: Human Rights Movements/ Activism in India

NGOs and Peoples' Movements: People's Union for Civil Liberties (PUCL); Peoples Union for Democratic Rights (PUDR); Mazdoor Kisan Shakti Sangathan (MKSS); Human Rights Law Network (HRLN); National Alliance for People's Movement (NLPM)

References

Suggested Readings:

Eide, Asbjorn (1986), "Human Rights Movement and the Transformation of International Order", *Alternatives*, Vol.11, No.3, pp.367-402.

Karna, G. N. (2000), "Disability Rights Movement: Conceptual Framework and Its Implications for India", *Disabilities and Impairments*, Vol.14, No.1, pp.15-22.

Kaushik, Vijay (1999), *Women's Movements and Human Rights,* Jaipur: Pointer Publishers.

Kothari, Smitu (1990), "Human Rights Movement in India: A Critical Overview", *Social Action*, Vol.40, No.1, pp.1-15.

Puri, Balraj (1990), "Role of Human Rights Groups in Kashmir", *Radical Humanist*, Vol. 54, No.4, July, pp.25-28.

Reddaway, Peter (1972), *Uncensored Russia: The Human Rights Movement in the Soviet Russia,* Delhi: National Academy.

Roy, Jaytilak Guha (1999), "Human Rights Movement in Modern India", in A. P. Vijapur and Kumar Suresh (eds.), *Perspectives on Human Rights,* New Delhi: Manak Publications, pp.50-58.

Steiner, Henry J. (1990), *Diverse Partners: Non-Governmental Organizations in the Human Rights Movement: The Report of a Retreat of Human Rights Activists,* Massachusetts: Harvard Law School.

Further Readings:

Thoolen, H. and B. Verstappen (1986), *Human Rights Missions*, The Hague: Martinus Nijhoff.

Tyagi, Y. K. (1995), "Golden Jubilee of Unfinished Task: The United Nations Human Rights Movement", *International Studies*, Vol.32, No.4, pp.441-60.

Tyne, Claude H. Van (1990), India Freedom Movement, Delhi: Akashdeep Publishing House.

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CORE PAPER 14: HUMAN RIGHTS AND CRIMINAL JUSTICE SYSTEM

Max Marks : 100
Theory : 80 Marks
Int. Ass. : 20 Marks
Time : 3 hours

NOTE: The Paper carries 80 marks. There shall be 9 questions in the question paper and the candidate shall be required to attempt 5 questions in all. The first question shall be compulsory containing 15 short answer type questions spreading over the entire syllabus and to be answered in about 25 to 30 words. The candidate shall be required to attempt any 10 short answer type questions out of 15 questions asked. Each short answer type question shall be of 2 marks. Rest of the paper carrying 60 marks, shall be divided into 4 units. Each unit shall have two questions and the candidate shall be given internal choice i.e. out of the two questions asked, the candidate shall attempt one question from each of the four units.

OBJECTIVES: Criminal Justice system is one of the critical areas of human Rights and Duties where the legal system is Tested on a continuous basis for preservation of peace and security in society on the one hand, and preservation of human dignity of both victims of crime and person accused of it. This Paper covers, besides the conceptual and other perspectives, the principal rights problems, rights of the accused, the rights of inmates of prisons and custodial homes, access to justice, right to compensation, punishments, administration of justice and international perspectives.

Course Contents

Unit- I: *Conceptual Perspective*:

Concept of crime and criminal liability; Offences involving Human Rights; Role of Criminal Justice System; Historical, Philosophical and Social Perspectives

Unit-II: *Rights of the Accused*
Double Jeopardy, Against self- incrimination, Production before Magistrate, Fair Trial, Speedy Trial, Appeal; Rights of inmates of Prisons and Custodial Homes: Protection Homes, Reformative and other institutions, Prisons: Right to Legal Aid, Access To Justice and Speedy Justice; Right to Compensation; Police Atrocities and Accountability; Violence against women and children; Communal violence; Caste and class conflicts; Maintenance of Law and Order; Terrorism and Insurgency.

Unit-III: *Criminal Justice Administration*

Institutions and Problems Criminal Justice Administration: Ordinary Courts; Special Courts; District Human Rights Courts; Nyaya Panchayats;

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Unit IV: *International Crime and Crime Control Scenario*

International crimes: Nature and Types International crime control and protection agencies, e.g. Interpol; International co-operation in combating transnational organized crimes and international terrorism – Palermo Convention on Transnational Organized Crime 2000, Convention against Illicit Trafficking of Narcotic and Psychotropic Substances 1988-90; Role of Extradition and mutual assistance in criminal proceedings; International Criminal Court- Rome Statute 1998; International norms on administration of criminal justice – UN General Assembly resolutions.

References

Suggested Readings:

Arora, Nirman (1999), "Custodial Torture in Police Stations in India: A Radical Assessment", *Journal of Indian Law Institute*, Vol.41, Nos.3 and 4, pp.513-29.

Ashutosh (2009), *Rights of Accused*, New Delhi, Universal Law Publishing Co.

Bag R.K. (1997), " Domestic Violence and Crime Against Women: Criminal Justice Response in India" (1985*) Journal of Indian Law Institute,* Vol.39, Nos.2-4,pp.359-75.

Bakken, T. (1985), "International Law and Human Rights for Defendants in Criminal Trials", *Indian Journal of International Law*, Vol.25, pp.411-23.

Bava Noorjahan (ed.) (2000), *Human Rights and Criminal Justice Administration in India,* New Delhi: Uppal Publishing House.

Baxi, Upendra (1988), "Clemency, Extradition and Death: The Judicial Discourse in Kehar Singh", *Journal of Indian Law Institute,* Vol.30, No.4, Oct.-Dec., pp.501-86.

Bhagwati, P.N. (1985), "Human Rights in the Criminal Justice System", *Journal of the Indian Law Institute,* Vol.27, No.1, pp.1-22.

Ghosh, S.K.(1993), *Torture and Rape in Police Custody,* New Delhi: Ashish Publishing House.

Further Readings:

Green, L.C.(1988), " International Criminal Law and the Protection of Human Rights", in Bin Cheng and E.D. Brown (eds.), *Contemporary Problems of International Law: Essays in Honour of George Schwarzenberger on His Eightieth Birthday,* London: Stevens, pp.116-37.

Guttal,G.H. (1986), "Human Rights: The Indian Law", *Indian Journal of International Law*,Vol.26,pp.53-71.

Landerer, L.E. (1971), "Capital Punishment as a Human Rights Issue before the United Nations", *Human Rights Journal*, Vol.4, No. 2, pp.511-34.

Manohar, Sujata v. (1996), "Judiciary and Human Rights", *Indian Journal of International Law*, Vol.36, pp. 39-54.

Scobb, Harry M. and Laurie Wizeberg (eds.) (1984), *Access to Justice: Struggle for Human Rights in South-East Asia,* Washington D.C.: Human Rights Internet.

Suresh, H. (1996), "Human Rights and Criminal Justice Functionaries", *Economic and Political Weekly*, Vol.31, No.24,15 June, pp. 1441-44.

South Asia Human Rights Documentation Centre (2007), *Handbook of Human Rights and Criminal Justice in India: The System and Procedure,* New Delhi, OUP.

UN, (1991), *Enforced or Involuntary Disappearances,* Geneva: Center for Human Rights, World Campaign for Human Rights.

UN (1997), *Extra-judicial, Summary or Arbitrary Executions,* Geneva: Center for Human Rights, world Campaign for Human Rights.

UN, (1994), *Human Rights and Pre-trial Detention: A Handbook of International Standards relating to Pre-trial Detention,* New York: UN Publication Division.

UNESCO, (1984), *Violations of Human Rights: Possible Rights of Recourse and Forms of Resistance,* Paris: UNESCO.

Vadackumchery, James (1991), *The Police and Delinquency in India,* New Delhi: APH Publishing Corporation.

Vibhute, K.I. (1990), "Compensating Victims of Crimes in India: An Appraisal", *Journal of Indian Law Institute,* Vol.32, No.1, pp.68-81.

Vibhute, K.I. (2004), *Criminal Justice: A Human Rights Perspective of the Criminal Justice Process in India,* Lucknow Eastern Book Company.

Walsh, Cecil (1999), *Crime and Punishment in Indian Society,* Delhi: Shubhi Publications.

CORE PAPER 15/11: Field Work Based Dissertation

Kindly read the foot note on page 3.

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CORE PAPER 16: THE CANDIDATE HAS TO OPT FOR ANY ONE OF THE FOLLOWING OPTIONAL PAPERS

Optional Paper II (a) - Minorities, Human Rights and Duties

Optional Paper II (b) - Rights of the Displaced People and their Rehabilitation

Optional Paper II (c) - Peoples' Right to Self-Determination

OPTIONAL PAPER II (a): MINORITIES, HUMAN RIGHTS AND DUTIES

Max. Marks: 100
Theory : 80 Marks
Int. Ass. : 20 Marks
Time : 3 Hours

NOTE: The Paper carries 80 marks. There shall be 9 questions in the question paper and the candidate shall be required to attempt 5 questions in all. The first question shall be compulsory containing 15 short answer type questions spreading over the entire syllabus and to be answered in about 25 to 30 words. The candidate shall be required to attempt any 10 short answer type questions out of 15 questions asked. Each short answer type question shall be of 2 marks. Rest of the paper carrying 60 marks, shall be divided into 4 units. Each unit shall have two questions and the candidate shall be given internal choice i. e, out of the two questions asked, the candidate shall attempt one question from each of the four units.

Objectives

Concern for minority rights has been the hallmark of the twentieth century. This paper, through its four units, deals with conceptual, historical, philosophical and social perspectives, the rights and duties under the Indian legal system and institutional mechanism, and international protection of minorities.

Course Contents

Unit I: Conceptual, Historical, Philosophical and Social Perspectives

Minorities as a socio-economic-religious-linguistic concept, Regional minorities; Role of Minorities in the development of human rights

Unit II: Rights and Duties of Minorities under the Indian Legal System

Constitutional Framework: Fundamental Rights, Directive Principles and Fundamental Duties; Special provisions in Articles 26 to 30, 331, 333, 336, & 337 of the Constitution. Special Laws and Policies: National Commission for Minorities Act

1992, Caste Disabilities Removal) Act 1950; Other relevant laws; Policy of secularism and politics of minorities.

Unit III: Institutional Mechanisms for Protection of Minorities

Constitutional mechanisms: Legislature, Executive and Judiciary; Non-Governmental Organizations; The Information Media; Role of Education.

Unit IV: International Protection of Minorities

Declaration on the Rights of Persons Belonging to National or Ethnic, Religious and Linguistic Minorities 1992, Human Rights Covenants 1966, Racial Discrimination Convention 1965; UN Commission on Human Rights, Sub-commission on Minorities, Committees under the Human Rights Covenants and Racial Discrimination Convention

References

Suggested Readings:

Bhargava, G.S. and R.M.Pal (eds.) (2000) Human Rights of Dalits: Societal Violation. New Delhi: Gyan Publishing House.

Brolmann, C. et al. (eds.) (1993), *Peoples and Minorities in International Law,* Dordrecht: Martinus Nijhoff.

Choedon, Yeshi (1994), "Ethnic, Social and Religions Conflicts: Rights of Minorities", in K.P.Saksena, (ed.), *Human Rights: Perspective and Challenges,* New Delhi: Lancers Books, pp.282-90.

Narang, A.S. (1999), "Debate on Minority Rights", in A.P.Vijapur and Kumar Suresh, (eds.), *Perspectives on Human Rights,* New Delhi: Manak Publications, pp.163-73.

Further Readings:

Reddy, Jagmohan (1981), *Minorities and the Constitution,* Bombay: Bombay University Press.

Saxena, J.N. (1983), "International Protection of Minorities and Individual Human Rights", *Indian Journal of International Law*, Vol.23, pp.38-55.

Sheth, D. L. and Gurpreet Mahajan (eds.) (1999), *Minority Identities and the Nation State,* New Delhi: Oxford University Press.

Thamilmaran, V.T., "Ethnic, Social and Religious Conflicts: Rights of Minorities", in K.P.Saksena (ed.) (1994), *Human Rights: Perspectives and Challenges,* New Delhi: Lancers Books, pp.274-81.

Thornberry, Patrick (1991), *International Law and the Rights of the Minorities*. Oxford: Clarendon Press.

Thornberry, Patrick (1993), *The UN Declaration of Rights of Persons Belonging to National of Ethics, Religious and Linguistic Minorities: Background, Analysis and Observations,* London: Minority Rights Group.

UN, (1998), *Minority Rights,* Geneva: Center for Human Rights, World Campaign for Human Rights.

UN, (1991), *Rights, Study on the Rights of Persons Belonging to Ethnic, Religious and Linguistic Minorities,* New York: UN Publication Division.

Optional Paper II (b): RIGHTS OF THE DISPLACED PEOPLE AND THEIR REHABILITATION

Max. Marks: 100
Theory : 80 Marks
Int. Ass. : 20 Marks
Time : 3 Hours

NOTE: The Paper carries 80 marks. There shall be 9 questions in the question paper and the candidate shall be required to attempt 5 questions in all. The first question shall be compulsory containing 15 short answer type questions spreading over the entire syllabus and to be answered in about 25 to 30 words. The candidate shall be required to attempt any 10 short answer type questions out of 15 questions asked. Each short answer type question shall be of 2 marks. Rest of the paper carrying 60 marks, shall be divided into 4 units. Each unit shall have two questions and the candidate shall be given internal choice i.e. out of the two questions asked, the candidate shall attempt one question from each of the four units.

Objectives

This paper deals with the very relevant issue of the project of development being pursued by contemporary societies and the problems that ensue from it. Specifically it focuses on the phenomena of displacement and rehabilitation and the role played by the UN, the state and the NGO sector in dealing with these issues.

Unit I: Development and Displacement

Development and Human Settlement Patterns: The Continuum from Voluntary to Forced Migration; The Place of Displacement in the Paradigm of Induced Development; Development-induced displacement and resettlement (DIDR), Consequences of displacement: Physical, Environmental, Economic, Social, Cultural, Psychological.

Unit II: History and Content of Resettlement Knowledge

From Empirical Research to Theory; the Emergence of Resettlement Policies and Standards; State and Private Sector Policies – The World Bank, OECD Aid Agencies, ADB, China, India, Private Sector Corporations/IFC

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Unit III: Analyses of Large-scale Hydropower Projects

Structure and Process in Displacement and Resettlement:—Egypt (Aswan); India (Narmada Sardar Sarovar); China (Shuikou) ; Argentina (Yacyreta); Togo(Nangbeto); Costa Rica (Arenal)

Unit IV: Resettlement of Displaced Persons

UN: Guiding Principles on Internal Displacement; Inter-Agency Standing Committee: Policy paper 1999; International Federation of Social Workers: International Policy Statement on Displaced Persons; Resettlement of displaced persons in India.

References

Suggested Readings:

Cheria, Anita et al. (2004), *Human Rights Approach to Development: Resource Book,* Banglore: Books for Change.

Jain, Devaki (1990), "Working with Human Rights to Development", *Mainstream*, Vol. 29, No.7, 8 December, pp.29-33.

Menon, N. R. Madhava (1999), "State of Economic and Social Rights", in K. P. Saksena, (ed.), *Human Rights: Fifty Years of India's Independence,* New Delhi: Gyan Publishing House, pp.145-155.

Mishra, Pramod (ed.), *Human Rights in South Asia,* Delhi: Kalpaz Publications.

O'Byrne, Darren J. (2003), *Human Rights: An Introduction,* New Delhi: Pearson.

Raj, Suhendu Ranjan (1999), "Development Perspectives and Human Rights", in A.P.Vijapur and Kumar Suresh, (eds.), *Perspectives on Human Rights,* New Delhi: Manak publications, pp.267-80.

Rehman, M. M. et al. (2000), *Human Rights and Human Development: Concepts and Contexts,* New Delhi: Manak Publications.

Saksena, K. P. (1991), "Human Rights and the Right to Development", *International Studies*, Vol. 28, No. 1, pp. 41-54.

Further Readings:

Sanajaoba, N. (2000), *Human Rights in the New Millennium,* New Delhi: Manas Publications.

Sen Shankar (1998), *Human Rights in a Developing Society,* New Delhi: A.P.H. Publishing.

Sengupta, Arjun (2003), "Human Right to Development", *Journal of The National Human Rights Commission*, Vol.2.

Shepherd, George W. and Ved Nanda (eds.) (1985), *Human Rights and Third World Developments,* Westport: Greenwood Press.

OPTIONAL PAPER II (c) :PEOPLES' RIGHT TO SELF-DETERMINATION

Max. Marks: 100
Theory : 80 Marks
Int. Ass. : 20 Marks
Time : 3 Hours

NOTE: The Paper carries 80 marks. There shall be 9 questions in the question paper and the candidate shall be required to attempt 5 questions in all. The first question shall be compulsory containing 15 short answer type questions spreading over the entire syllabus and to be answered in about 25 to 30 words. The candidate shall be required to attempt any 10 short answer type questions out of 15 questions asked. Each short answer type question shall be of 2 marks. Rest of the paper carrying 60 marks, shall be divided into 4 units. Each unit shall have two questions and the candidate shall be given internal choice i.e. out of the two questions asked, the candidate shall attempt one question from each of the four units.

Objectives

This paper is divided into four units. They comprise the conceptual perspective, the evolution of the concept of self-determination, evolution of ideas of nationalism, autonomy and self-government, independence and federalism in India, and self-determination in international relations.

Course Contents

Unit I: Normative and Conceptual Perspectives

Meaning of self-determination: autonomy, democracy, governance, self determination as a process; Self-determination: External and Internal, New Dimensions and emerging debates

Unit II: Origins and Development of the Concept

Theories of self-governance: Kant, Locke, Rousseau, Marx; Views on pluralism: McIver and Laski; Issues of legitimacy of State and forms of governance; Colonization, Nationalism and statehood; National liberation movements (North America, France, Latin American and Afro-Asian countries); Marxist theory of nationalities, Bolshevik

revolution, Lenin and constitution-making in the former socialist countries; Woodrow Wilson's Fourteen Points, redrawing of boundaries of former empires, League of Nations and the concept of 'sacred trust of civilization'

Unit III: The Indian Case

Evolution of Ideas of Nationalism, Autonomy and Self- Government, Independence and Federalism in India; National uprisings during colonial rule and 1857 quest for independence; Emergence of the Indian National Congress, demands for self-determination: Mahatma Gandhi and self-determination (political and economic freedom, raja shakti and jana shakti, village republics); Federalism: Motilal Nehru Committee Report 1928 and the demand for Purna Swaraj, the Government of India Act 1935, Quit India Resolution of 8 August 1942, Objectives Resolution of the Constituent Assembly (22 January 1947); The constitutional framework of India; Union-State relations, Problems and challenges: Problems relating to formation of States, including special relationship with the State of Jammu and Kashmir, Problems of Union-State relations - the Rajamannar and the Sarkaria Commissions, Challenges of diversity, development and separatism.

Unit IV: Self-Determination in International Relations

Emergence of the principle of self-determination on the international plane: League of nations, Minority treaties, Atlantic Charter 1941, UN Charter (Article 1(2), Articles 55-56 and the concept of sacred trust of civilization, Chapters XI, XII and XII) Framework and role of UN de-colonization process, Debate between domestic jurisdiction and the people's right of self-determination, Normative developments: UN Declarations on the granting of independence to colonial Countries and Friendly Relations and Cooperation among States; Various UN Declarations on Economic self-determination.

References

Suggested Readings:

Cassese, Antonio (1995), *Self-determination of Peoples,* Oxford: Cambridge University Press.

Cobban, A. (1969), *The Nation-State and National Self-determination,* Leiden: Sijthoff.

Frank, Thomas M. (1998), “Personal Self-Determination: The Next Wave in Constructing Identity”, in Antony Anghie and Garry Sturgess (eds.), *Legal Visions of the 21st Century: Essays in Honour of Judge Christopher Weeramantry,* The Hague: Kluwer, pp. 241-60.

Guruswamy, M. et al. (1997), “The Contemporary Character of the Principle of Self-determination”, *Indian Journal of International Law,* Vol.37, pp.105-107.

Islam, M. Rafiqul (1996), "Indigenous Self-determination at Cross Road Right of its People", *Indian Journal of International Law,* Vol. 36, pp.39-56.

Joshi, P.C. (1994), "The Right to Self-Determination: Its Scope and Limits", *Journal of Philosophical Studies*, Vol.1, No.1, February, pp.8-24.

Kirgis, Federic L. Jr. (1994), "The Degrees of Self-determination in the United Nations Era", *American Journal of International Law*, Vol.88, no.2, pp. 304-11.

Further Readings:

Mendelson, M.H. (1996), "Self-determination in Jammu and Kashmir", *Indian Journal of International Law*, Vol.36, pp.1-33.

Moniruzzaman, A.H.M. (1996), "Self-determination as a Collective Human Right: An Appraisal", *Bliss Journal*, Vol.11, No.1, January, pp.33-53.

Nirmal, B.C. (1999), *Rights of Self-Determination in International Law: Evolution, UN Law and Practice, New Dimensions,* New Delhi: Deep and Deep Publications.

Norbu, Dawa (1997), "Self-determination in the Post Soviet Era: A Case Study of Tibet", *International Studies*, Vol.34, pp.237-69.

Partsch, Karl Josef (1982), "Fundamental Principles of Human Rights: Self-determination, Equality and Non-discrimination", in Karel Vasak, (ed.), *The International Dimensions of Human Rights*, Vol. I., Paris: UNESCO, pp.61-72.

Saini, R.S. (1998), "Is the Right to Self-determination Relevant to Jammu and Kashmir", *Indian Journal of International Law,* Vol.38, pp.156-8.

Saini, R.S. (1999), "Right to Self-determination / Secede and International Terrorism: What are the UN Norms and Practices", in A.P.Vijapur and Suresh Kumar, (eds.), *Perspectives on Human Rights,* New Delhi: Manak Publishers, pp.353-73.

Swan, George S. (1982), "Self-determination and the United Nations Charter", *Indian Journal of International Law*, Vol.22, pp.264-77.

Tomaschat, C. (ed.) (1993), *Modern Law of Self-determination,* Dordrecht: Martinus Nijhoff.

UN, (1981), *The Right to Self-determination: Historical and Current Development on the Basis of United Nations Instruments,* New York: UN Publication Division.

UN, (1980), *The Right to Self-determination: Implementation of United Nations Resolutions,* New York: UN Publication Division.

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